

PLD 1998 SC 1445: MEHRAM ALI V. FEDERATION OF PAKISTAN

GOVERNMENT OF PAKISTAN • SUPREME COURT OF PAKISTAN • FEDERAL

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PREAMBLE: Landmark Judgment of the Supreme Court of Pakistan: Affirmed that Special Courts and Anti-Terrorism Courts must remain subordinate to High Courts to preserve judicial independence.

Paragraph 1: Ratio Decidendi and Legal Principle

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Affirmed that Special Courts and Anti-Terrorism Courts must remain subordinate to High Courts to preserve judicial independence.

Paragraph 2: Binding Precedent under Article 189

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Under Article 189 of the Constitution, any decision of the Supreme Court shall, to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other Courts in Pakistan.